

Terms of Service

If your country of residence or establishment is within the European Economic Area (“**EEA**”), Switzerland or the United Kingdom, the [Terms of Service for European Users](#) apply to you.

If your country of residence or establishment is outside of the EEA, Switzerland, Australia, and the United Kingdom, the [Terms of Service for Users outside of the EEA, UK, and Australia](#) apply to you.

If your country of residence or establishment is in Australia, the [Terms of Service for Australian Users](#) apply to you.

Terms of Service for Users outside of the EEA, UK, and Australia

Section 22 of these Terms contains an arbitration agreement and class action waiver that apply to all claims brought against Airbnb in the United States. Please read them carefully.

Last Updated: May 13, 2025

Thank you for using Airbnb!

The documents referred to within these Terms include but are not limited to our:

- [Payments Terms of Service](#), which govern any payment services provided to Members by the Airbnb payment entities (such entities, collectively, “**Airbnb Payments**”).
- [Privacy Policy](#), which describes our collection and use of personal data.
- [Service Fees Policy](#), which describes how Airbnb service fees are charged to Hosts and Guests.
- [Offline Fee Policy](#), which describes the circumstances in which a Host can charge additional fees or charges outside the Airbnb Platform.
- [Off-Platform Policy](#), which prohibits certain actions from occurring outside of the Airbnb Platform.
- [Taxes Policy](#), which explains what taxes may apply to a Reservation.
- [Host Privacy Standards](#), that specify how Hosts should handle Guest Personal Information.
- [Additional Terms for Service and Experience Hosts](#), which govern the use of the Airbnb Platform to publish and offer Services and Experiences.
- [Cancellation Policies for Homes](#), that explain the cancellation policies that may

apply to a listing. The Host's cancellation policy applicable to each reservation is displayed on the Listing page before booking.

- **Cancellation Policies for Service and Experience Listings**, that explains the cancellation policies that may apply to a Service or Experience.
- **Major Disruptive Events Policy**, which explains how cancellations are handled when unforeseen events beyond your control arise after booking and make it impractical or illegal to complete your Reservation.
- **Rebooking and Refund Policy for Homes**, which explains how Airbnb will assist with rebooking a reservation and how Airbnb handles refunds when a Host cancels a reservation or another Reservation Issue disrupts a stay.
- **Refund Policy for Services and Experiences**, which explains how refunds are handled for Services and Experiences when a Host cancels or a Reservation Issue occurs.
- **Resolution Center page**, which describes how money-related disputes between Hosts and Guests may be resolved.
- **Host Damage Protection Terms**, which explains the terms, exclusions and limitations under which Airbnb will agree to pay a Host to repair or replace Covered Property as a result of a Covered Loss.
- **Reviews Policy**, which governs reviews left by Members on the Airbnb Platform.
- **Community Standards**, that apply to Members and help ensure safe stays, services, experiences, and interactions.
- **Community Policies**, which sets out expectations of Members of the Airbnb Community.
- **Content Policy**, which governs the posting by Members of content on the Airbnb Platform.
- **Nondiscrimination Policy**, which describes the fundamental principles of inclusion and respect and provides guidance to Members in making accommodation distinctions based on certain personal characteristics.
- **Services and Experiences Standards and Requirements**, which explains the standards and requirements that apply to Services and Experiences.

For convenience, we have set out above several terms and policies that are referred to in these Terms. However, it is important that you note that there are other supplemental policies and terms linked from our **Additional Legal Terms** and **Policies** pages, which apply to your use of the Airbnb Platform, and are incorporated by reference, and form part of the binding legal agreement between you and Airbnb. Your use of the Airbnb Platform is also subject to the **Privacy Policy**.

These Terms of Service (“**Terms**”) are a binding legal agreement between you and Airbnb that govern the right to use the websites, applications, and other offerings from Airbnb (collectively, the “**Airbnb Platform**”). When used in these Terms, “**Airbnb**,” “**we**,” “**us**,” or “**our**” refers to the Airbnb entity set out on **Schedule 1** with whom you are contracting.

The Airbnb Platform enables users (“**Members**”) to publish, offer, search for, and book services. Members who publish and offer services are “**Hosts**” and Members

who search for, book, or use services are “**Guests, Participants, or Travelers.**” Hosts offer accommodations (“**Accommodations**”), activities, excursions, and events such as tours, classes, live performances, or outdoor activities which are designated as experiences on the Airbnb Platform (“**Experiences**”), services and activities often provided at an Accommodation such as personal trainers, wellness sessions, or meal preparation which are designated as services on the Airbnb Platform (“**Services**”), and a variety of travel and other services (collectively, “**Host Services**,” and each Host Service offering, a “**Listing**”). As the provider of the Airbnb Platform, Airbnb (or its affiliates) does not own, control, offer or manage any Listings or Host Services. Airbnb is not a party to the contracts entered into directly between Hosts and Guests, nor is Airbnb a real estate broker, travel agency, or insurer. Airbnb is not acting as an agent in any capacity for any Member, except as specified in the Payments Terms of Service (“**Payment Terms**”). To learn more about Airbnb’s role see Section 15.

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Schedule 1 - Contracting Entities

Guest Terms

1. Searching and Booking on Airbnb.

1.1 Searching.

You can search for Host Services by using criteria like the type of Host Service, type of listing, travel destination, travel dates, and number of guests. You can also use

filters to refine your search results. Search results are based on their relevance to your search and other criteria. Relevance considers factors like price, availability, Reviews, customer service and cancellation history, popularity, previous trips and saved Listings, Host requirements (e.g. minimum or maximum nights), and more. Learn more about search results in our [Help Center](#).

1.2 Booking.

When you book a Listing, you are agreeing to pay all charges for your booking including the Listing price, applicable fees like [Airbnb's service fee](#), [offline fees](#), [taxes](#), and any other items identified during checkout (collectively, "**Total Price**"). If you choose to pay using a currency that differs from the currency set by the Host for their Listing, the price displayed to you is based on a currency conversion rate determined by us. You are also agreeing that Airbnb via Airbnb Payments may charge the Payment Method (as defined in the Payment Terms) used to book the Listing in order to collect Damage Report (as defined in Section 14) amounts.

When you receive the booking confirmation, a contract for Host Services (a "**Reservation**") is formed directly between you and the Host. By making a Reservation you are agreeing to the terms of the contract. The terms of the contract include these Terms, all terms of the Reservation, including without limitation, the cancellation policy and any other rules, standards, policies, or requirements identified in the Listing or during checkout that apply to the Reservation. It is your responsibility to read and understand these terms of the contract including these Terms and all terms of the Reservation including all rules, standards, policies, and requirements prior to booking a Listing. Be aware that some Hosts work with a co-host or as part of a team to provide their Host Services.

1.3 Accommodation Reservations.

An Accommodation Reservation is a limited license to enter, occupy, and use the Accommodation. The Host retains the right to re-enter the Accommodation during your stay, to the extent: (i) it is reasonably necessary, (ii) permitted by your contract with the Host, and (iii) permitted by applicable law. If you stay past checkout, the Host has the right to make you leave in a manner permitted with applicable law, including by imposing reasonable overstay penalties. You may not exceed the maximum number of allowed Guests.

1.4 Reservations for Services, Experiences, and Other Host Services.

A Service, Experience, or other Host Service Reservation entitles you to participate

in, attend, or use that Host Service. You are responsible for confirming that you, and anyone you invite, meet minimum age, proficiency, fitness, or other requirements. You are responsible for informing the Host of any medical or physical conditions, or other circumstances that may impact your ability to participate, attend, or use the Service, Experience, or Host Service. Except where expressly authorized, you may not allow any person to join a Service, Experience, or Host Service unless they are included as an additional guest during the booking process.

2. Cancellations, Reservation Issues, Refunds and Booking Modifications.

2.1 Cancellations, Reservation Issues, and Refunds.

In general, if you cancel a Reservation, the amount refunded to you is determined by the Host's [cancellation policy](#) that applies to that Reservation. But, in certain situations, other policies take precedence and determine what amount is refunded to you. If something outside your control forces you to cancel a Reservation, you may be eligible for a partial or full refund under our [Major Disruptive Events Policy](#). If the Host cancels, or you experience a Reservation Issue (as defined in our [Rebooking and Refund Policy for Homes](#)), you may be eligible for rebooking assistance or a partial or full refund under the [Rebooking and Refund Policy for Homes](#). Different policies apply to certain categories of Listings; for example Services and Experiences Reservations are governed by the [Refund Policy for Services and Experiences](#). See each [Additional Legal Term](#) or [Policy](#) for details about what is covered, and what refund applies in each situation. You may appeal a decision by Airbnb by contacting our [customer service](#).

2.2 Booking Modifications.

Guests and Hosts are responsible for any booking modifications they agree to make via the Airbnb Platform or direct Airbnb customer service to make on their behalf ("**Booking Modifications**"), and agree to pay any additional amounts, fees, or taxes associated with any Booking Modification.

3. Your Responsibilities and Assumption of Risk.

3.1 Your Responsibilities.

You are responsible and liable for your own acts and omissions and are also responsible for the acts and omissions of anyone you invite to join or provide access

to any Accommodation, all areas and facilities where the Accommodation is located that the Host and Guest are legally entitled to use in connection with the Accommodation (“**Common Areas**”), or any Service, Experience, or other Host Service. For example, this means: (i) you are responsible for leaving an Accommodation (and related personal property) or Common Areas in the condition it was in when you arrived, (ii) you are responsible for paying all reasonable Damage Request amounts, and (iii) you must act with integrity, treat others with respect, and comply with applicable laws at all times. If you book a Host Service on behalf of additional guests, you are required to ensure that every additional guest meets any requirements set by the Host, and is made aware of and agrees to these Terms and any terms and conditions, rules and restrictions set by the Host. If you are booking for an additional guest who is a minor or if you bring a minor to a Host Service, you must be legally authorized to act on behalf of the minor and you are solely responsible for the supervision of that minor. You are not responsible for the acts and omissions of anyone who you have contracted with through Airbnb for the provision of Host Services, and have invited or provided access to an Accommodation for the purpose of providing such Host Services.

3.2 Your Assumption of Risk.

You acknowledge that many activities carry inherent risks and agree that, to the maximum extent permitted by applicable law, you assume the entire risk arising out of your access to and use of the Airbnb Platform and any Content (as defined in Section 9), including your stay at any Accommodation, participation in any Service, Experience, use of any other Host Service, or any other interaction you have with other Members whether in person or online. This means it is your responsibility to investigate a Host Service to determine whether it is suitable for you. For example, Host Services may carry risk of illness, bodily injury, disability, or death, and you freely and willfully assume those risks by choosing to participate in those Host Services.

Host Terms

4. Hosting on Airbnb.

4.1 Host.

As a Host, Airbnb offers you the right to use the Airbnb Platform in accordance with these Terms to share your Accommodation, Service, Experience, or other Host

Service with our vibrant community of Guests - and earn money doing it. It's easy to create a Listing and you are in control of how you host - set your price, availability, and rules for each Listing.

4.2 Contracting with Guests.

When you accept a booking request, or receive a booking confirmation through the Airbnb Platform, you are entering into a contract directly with the Guest, and are responsible for delivering the Host Service under the terms and at the price specified in your Listing. You are also agreeing to pay applicable fees like Airbnb's service fee (and applicable guest taxes) for each booking. Airbnb Payments will deduct amounts you owe from your payout unless we and you agree to a different method. Any terms or conditions that you include in any supplemental contract with Guests must: (i) be consistent with these Terms, our Additional Legal Terms, Policies, and the information provided in your Listing, and (ii) be prominently disclosed in your Listing description.

4.3 Independence of Hosts.

Your relationship with Airbnb is that of an independent individual or entity and not an employee, agent, joint venturer, or partner of Airbnb, except that Airbnb Payments acts as a payment collection agent as described in the Payments Terms. Airbnb does not direct or control your Host Service, and you understand that you have complete discretion whether and when to provide Host Services, and at what price and on what terms to offer them.

5. Managing Your Listing.

5.1 Creating and Managing Your Listing

The Airbnb Platform provides tools that make it easy for you to set up and manage a Listing. Your Listing must include complete and accurate information about your Host Service, your price (including any additional charges), and any rules or requirements that apply to your Guests or Listing. You are responsible for your acts or omissions as well as keeping your Listing information (including calendar availability) and content (like photos) up-to-date and accurate at all times. You are responsible for obtaining appropriate insurance for your Host Services and we suggest you carefully review policy terms and conditions including coverage details and exclusions. You may only maintain one Listing per Accommodation, but may have multiple Listings for a single property if it has multiple places to stay. Any offer

of a Service or Experience is subject to our [Additional Terms for Service and Experience Hosts](#).

5.2 Know Your Legal Obligations.

You are responsible for understanding and complying with any laws, rules, regulations, and contracts with third parties that apply to your Listing or Host Services. For example: Some landlords and leases, or homeowner and condominium association rules, restrict or prohibit subletting, short-term rentals and/or longer-term stays. Some cities have zoning or other laws that restrict the short-term rental of residential properties. Some jurisdictions require Hosts to register, get a permit, or obtain a license before providing certain Host Services (such as short-term rentals, longer-term stays, preparing food, serving alcohol for sale, guiding tours, or operating a vehicle). In some places, the Host Services you want to offer may be prohibited altogether. Some jurisdictions require that you register Guests who stay at your Accommodation. Some jurisdictions have laws that create tenancy rights for Guests and additional obligations for Hosts. For example, some places have landlord-tenant, rent control, and eviction laws that may apply to longer stays. Check your local rules to learn what rules apply to the Host Services you plan to offer. Information we provide regarding legal requirements is for informational purposes only and you should independently confirm your obligations. You are responsible for handling and using personal data of Guests and others in compliance with applicable privacy laws and these Terms, including our [Host Privacy Standards](#). If you have questions about how local laws apply you should always seek legal advice.

5.3 Search Results.

The ranking of Listings in search results on the Airbnb Platform depends on a variety of factors, including these main parameters:

- Guest search parameters (e.g. number of Guests, destination, time and duration of the trip, price range),
- Listing characteristics (e.g. price, calendar availability, number and quality of images, Reviews, type of Host Service, Host status, length of time the Listing has been live on the Airbnb Platform, Guest engagement and popularity),
- Guest experience (e.g. customer service and cancellation history of the Host, ease of booking),
- Host and Listing requirements (e.g. minimum or maximum nights, booking cut-off time), and
- Guest preferences and history (e.g. previous trips, viewed and saved Listings, location from where the Guest is searching).

Search results may be different on our mobile application than on our website, and may also differ in the map view. Airbnb may allow Hosts to promote their Listings in search or elsewhere on the Airbnb Platform by paying an additional fee. More information about the factors that determine how your Listing appears in search results, our current promotional programs (if any), and how we identify promoted Content can be found in our [Help Center](#).

5.4 Your Responsibilities.

You are responsible and liable for your own acts and omissions and are also responsible for the acts and omissions of anyone you allow to participate in providing your Host Services. You are responsible for setting your price and establishing rules and requirements for your Listing. You must describe any and all additional fees and charges in your Listing description. You are also responsible for ensuring that all mandatory fees and charges applicable to your Listing are included in your price breakdown. You may not collect any fees or charges outside the Airbnb Platform except as expressly authorized by our [Offline Fee Policy](#). Do not encourage Guests to create third-party accounts, submit reviews, provide their contact information, or take other actions outside the Airbnb Platform in violation of our [Off-Platform Policy](#).

5.5 Hosting as a Team or Organization.

If you work with a co-host or host as part of a team, business, or other organization, you are responsible and liable as a Host under these Terms for the acts and omissions of each entity and individual who participates in providing your Host Services and you are responsible for informing personnel engaged by you to deliver any Host Services of your obligations under these Terms. If you accept terms or enter into contracts with third parties, you represent and warrant that you are authorized to enter into contracts for and bind your team, business or other organization, and that each entity you use is in good standing under the laws of the place where it is established. If you perform other functions, you represent and warrant that you are authorized to perform those functions. If you instruct Airbnb to transfer a portion of your payout to a co-host or other Hosts, or send payments to someone else, you must be authorized to do so, and are responsible and liable for the payment amounts and accuracy of any payout information you provide.

5.6 Your Assumption of Risk.

You acknowledge that hosting carries inherent risks and agree that you assume the entire risk arising out of your access to and use of the Airbnb Platform,

offering Host Services, or any interaction you have with other Members whether in person or online. You agree that you have had the opportunity to investigate the Airbnb Platform and any laws, rules, regulations, or obligations that may be applicable to your Listings or Host Services and that you are not relying upon any statement of law made by Airbnb.

6. Cancellations, Reservation Issues, and Booking Modifications.

6.1 Cancellations and Reservation Issues.

In general, if a Guest cancels a Reservation, the amount paid to you is determined by the cancellation policy that applies to that Reservation. As a host, you should not cancel on a Guest without a valid reason under our [Major Disruptive Events Policy](#) or applicable law. If you cancel on a Guest without such a valid reason, we may impose a [cancellation fee and other consequences](#). If: (i) a Guest experiences a Reservation Issue (as defined by the [Rebooking and Refund Policy for Homes](#)), (ii) a [Major Disruptive Event](#) arises, or (iii) a Reservation is canceled under Section 12 of these Terms, the amount you are paid will be reduced by the amount we refund or otherwise provide to the Guest, and by any other reasonable costs we incur as a result of the cancellation. If a Guest receives a refund after you have already been paid, or the amount of the refund and other costs incurred by Airbnb exceeds your payout, Airbnb (via Airbnb Payments) may recover that amount from you, including by deducting the refund against your future payouts. You agree that Airbnb's [Rebooking and Refund Policy for Homes](#), [Major Disruptive Events Policy](#), and these Terms preempt the cancellation policy you set in situations where they allow for the cancellation of a Reservation and/or the issuance of refunds to Guests. If we reasonably expect to provide a refund to a Guest under one of these policies, we may delay release of any payout for that Reservation until a refund decision is made. If you Host a Service or Experience please note that the [Service and Experience Cancellation Policy](#), [Refund Policy for Services and Experiences](#) and different [cancellation fees and consequences](#) apply to your Reservations. See each [Policy](#) for details about what is covered, and what your payout will be in each situation.

6.2 Booking Modifications.

Hosts and Guests are responsible for any Booking Modifications they agree to make via the Airbnb Platform or direct Airbnb customer service to make on their behalf, and agree to pay any additional amounts, fees or taxes associated with a Booking Modification.

7. Taxes.

7.1 Host Taxes.

As a Host, you are responsible for determining and fulfilling your obligations under applicable laws to report, collect, remit, or include in your price any applicable VAT or other indirect taxes, occupancy taxes, tourist, income, or other taxes ("**Taxes**").

7.2 Collection and Remittance by Airbnb.

In jurisdictions where Airbnb facilitates the collection and/or remittance of Taxes on behalf of Hosts, you instruct and authorize Airbnb to collect Taxes on your behalf, and/or to remit such Taxes to the relevant Tax authority. Any Taxes that are collected and/or remitted by Airbnb are identified to Members on their transaction records, as applicable. Airbnb may seek additional amounts from Members (including by deducting such amounts from future payouts) when the Taxes collected and/or remitted are insufficient to fully discharge that Members' tax obligations, and you agree that your sole remedy for Taxes collected by Airbnb is a refund from the applicable Tax authority. You acknowledge and agree that we retain the right, with prior notice to affected Members, to cease the collection and remittance of Taxes in any jurisdiction for any reason.

7.3 Tax Information.

In certain jurisdictions, Tax regulations may require that we collect and/or report Tax information about you, or withhold Taxes from payouts to you, or both. If you fail to provide us with documentation that we determine to be sufficient to support any such obligation to withhold Taxes from payouts to you, we may withhold payouts up to the amount as required by law, until sufficient documentation is provided. You agree that Airbnb may issue on your behalf invoices or similar documentation for VAT, GST, consumption or other Taxes for your Host Services to facilitate accurate tax reporting.

General Terms

8. Reviews.

After each Host Service, Guests and Hosts will have an opportunity to review each other. Your Review must be accurate and may not contain any discriminatory, offensive, defamatory, or other language that violates these Terms, applicable law,

or our [Content Policy](#) or [Review Policy](#). Reviews are not verified by Airbnb for accuracy and may be incorrect or misleading.

9. Content.

Parts of the Airbnb Platform enable you to provide, share, or communicate feedback, text, photos, audio, video, information, and other content (“**Content**”). By providing Content, in whatever form and through whatever means, you grant Airbnb a non-exclusive, worldwide, royalty-free, perpetual, sub-licensable and transferable license to access, use, store, copy, modify, prepare derivative works of, distribute, publish, transmit, stream, broadcast, and otherwise exploit, in any manner such that Content to provide and/or promote the Airbnb Platform, in any media or platform, known or unknown to date and in particular on Internet and social networks. If Content includes personal information, such Content will only be used for these purposes if such use complies with applicable data protection laws in accordance with our [Privacy Policy](#). Where Airbnb (including its affiliates) pays for the creation of Content or facilitates its creation, Airbnb (including its affiliates) may own that Content, in which case supplemental terms or disclosures will say that. You are solely responsible for all Content that you provide and warrant that you either own it or are authorized to grant Airbnb (including its affiliates) the rights described in these Terms. You are responsible and liable if any of your Content violates or infringes the intellectual property or privacy rights of any third party. Content must comply with our [Content Policy](#) and [Nondiscrimination Policy](#), which prohibit, among other things, discriminatory, obscene, harassing, deceptive, violent, and illegal content. You agree that Airbnb may make available services or automated tools to translate Content and that your Content may be translated using such services or tools. Airbnb does not guarantee the accuracy or quality of translations and Members are responsible for confirming the accuracy of such translations.

10. Fees.

Airbnb may charge fees (and applicable Taxes) to Hosts and Guests for the right to use the Airbnb Platform. More information about when service fees apply and how they are calculated can be found on our [Service Fees page](#). Any applicable fees are disclosed to Guests before making a Booking. Except as otherwise provided on the Airbnb Platform, service fees are non-refundable. Airbnb reserves the right to change the service fees at any time, and will provide Members notice of any fee changes before they become effective. Fee changes will not affect bookings made prior to the effective date of the fee change. If you disagree with a fee change you

may terminate this agreement at any time pursuant to Section 12.2.

11. Airbnb Platform Rules.

11.1 Rules.

You must follow these rules and must not help or induce others to break or circumvent these rules.

- Act with integrity and treat others with respect
 - Do not lie, misrepresent something or someone, or pretend to be someone else.
 - Be polite and respectful when you communicate or interact with others.
 - Do not attempt to evade enforcement of these Terms, our **Additional Legal Terms, Policies**, or our **Standards**, such as by creating a duplicate account or listings.
 - Follow our **Nondiscrimination Policy** and do not discriminate against or harass others.
- Do not scrape, hack, reverse engineer, compromise or impair the Airbnb Platform
 - Do not use bots, crawlers, scrapers, or other automated means to access or collect data or other content from or otherwise interact with the Airbnb Platform.
 - Do not hack, avoid, remove, impair, or otherwise attempt to circumvent any security or technological measure used to protect the Airbnb Platform or Content.
 - Do not decipher, decompile, disassemble, or reverse engineer any of the software or hardware used to provide the Airbnb Platform.
 - Do not take any action that could damage or adversely affect the performance or proper functioning of the Airbnb Platform.
- Only use the Airbnb Platform as authorized by these Terms or another agreement with us
 - You may only use another Member's personal information as necessary to facilitate a transaction using the Airbnb Platform as authorized by these Terms.
 - Do not use the Airbnb Platform, our messaging tools, or Members' personal information to send commercial messages without their express consent.
 - You may use Content made available through the Airbnb Platform solely

- as necessary to enable your use of the Airbnb Platform as a Guest or Host.
- Do not use Content unless you have permission from the Content owner or the use is authorized by us in these Terms or another agreement you have with us.
 - Do not request, make, or accept a booking or any payment outside of the Airbnb Platform to avoid paying fees, taxes or for any other reason. See our **Offline Fee Policy** for exceptions.
 - Do not require or encourage Guests to open an account, leave a review, complete a survey, or otherwise interact, with a third party website, application or service before, during or after a Reservation, unless authorized by Airbnb.
 - Do not engage in any practices that are intended to manipulate our search algorithm.
 - Do not book Host Services unless you are actually using the Host Services.
 - Do not use, copy, display, mirror or frame the Airbnb Platform, any Content, any Airbnb branding, or any page layout or design without our consent.
 - Honor your legal obligations
 - Understand and follow the laws that apply to you, including privacy, data protection, and export laws.
 - If you provide us with someone else's personal information, you: (i) must do so in compliance with applicable law, (ii) must be authorized to do so, and (iii) authorize us to process that information under our **Privacy Policy**.
 - Read and follow our Terms, **Additional Legal Terms, Policies, and Standards**.
 - Do not organize or facilitate unauthorized parties or events. You are responsible and liable for any party or event during your Reservation that violates our **rules for parties and events**, as incorporated by reference herein.
 - Do not use the name, logo, branding, or trademarks of Airbnb or others without permission, and only as set forth in our **Trademark Guidelines**.
 - Do not use or register any domain name, social media handle, trade name, trademark, branding, logo, or other source identifier that is confusingly similar to any Airbnb trademarks, logos or branding. See our **Trademark Guidelines** for additional details.
 - Do not offer Host Services that violate the laws or agreements that apply to you.
 - Do not offer or solicit prostitution or participate in or facilitate human trafficking.

11.2 Reporting Violations.

If you believe that a Member, Listing or Content poses an imminent risk of harm to a person or property, you should immediately contact local authorities before contacting Airbnb. In addition, if you believe that a Member, Listing or Content has violated our Standards, you should report your concerns to Airbnb. If you reported an issue to local authorities, Airbnb may request a copy of that report. Except as required by law, we are not obligated to take action in response to any report.

11.3 Copyright Notifications.

If you believe that Content on the Airbnb Platform infringes copyrights, please notify us in accordance with our Copyright Policy.

12. Termination, Suspension and other Measures.

12.1 Term.

The agreement between you and Airbnb reflected by these Terms is effective when you access the Airbnb Platform (for example to create an account) and remains in effect until either you or we terminate the agreement in accordance with these Terms.

12.2 Termination.

You may terminate this agreement at any time by sending us an email or by deleting your account. Airbnb may terminate this agreement and your account for any reason by providing you 30 days' notice via email or using any other contact information you have provided for your account. Airbnb may also terminate this agreement immediately and without notice and stop providing access to the Airbnb Platform if you breach these Terms, you violate our Additional Legal Terms, or Policies, you violate applicable laws, or we reasonably believe termination is necessary to protect Airbnb, its Members, or third parties. If your account has been inactive for more than two years, we may terminate your account without prior notice.

Airbnb reserves the right to change our services, including to add or remove features and functionalities or change the types of Listings we accept or allow on the platform, including but not limited to: improve or update our services, prevent abuse, or respond to legal requirements.

12.3 Member Violations.

If (i) you breach these Terms, our [Additional Legal Terms](#), [Policies](#), or our [Standards](#), (ii) you violate applicable laws, regulations, or third-party rights, or (iii) Airbnb believes it is reasonably necessary to protect Airbnb, its Members, or third parties; Airbnb (or its affiliates) may, with or without prior notice:

- suspend or limit your access to or use of the Airbnb Platform and/or your account;
- suspend, remove, disable access to, or restrict visibility of Listings, Reviews, or other Content;
- cancel pending or confirmed bookings; or
- suspend or revoke any special status associated with your account.

For minor violations or where otherwise appropriate as Airbnb (or its affiliates) determines in its sole discretion, you will be given notice of any intended measure by Airbnb and an opportunity to resolve the issue. You may appeal actions taken by us under this Section by contacting customer service. If a Reservation is canceled under this Section, the amount paid to the Host will be reduced by the amount we refund or otherwise provide to the Guest, and by any other costs we incur as a result of the cancellation.

12.4 Legal Mandates.

Airbnb may take any action it determines is reasonably necessary to comply with applicable law, or the order or request of a court, law enforcement, or other administrative agency or governmental body, including the measures described above in Section 12.3.

12.5 Effect of Termination.

If you are a Host and terminate your Airbnb account, any confirmed booking(s) will be automatically canceled and your Guests will receive a full refund. If you terminate your account as a Guest, any confirmed booking(s) will be automatically canceled and any refund will depend upon the terms of the Reservation's cancellation policy. When this agreement has been terminated, you are not entitled to a restoration of your account or any of your Content. If your access to or use of the Airbnb Platform has been limited, or your Airbnb account has been suspended, or this agreement has been terminated by us, you may not register a new account or access or use the Airbnb Platform through an account of another Member.

12.6 Survival.

Parts of these Terms that by their nature survive termination, will survive termination of this agreement, including Sections 1 through 25.

13. Modification.

Airbnb may modify these Terms at any time. When we make material changes to these Terms, we will post the revised Terms on the Airbnb Platform and update the “Last Updated” date at the top of these Terms. We will also provide you with notice of any material changes by email, notifications through the Airbnb Platform, messaging service, or any other contact method made available by us and selected by you at least 30 days before the date they become effective. If you disagree with the revised Terms, you may terminate this agreement immediately as provided in these Terms. If you do not terminate your agreement before the date the revised Terms become effective, your continued access to or use of the Airbnb Platform will constitute acceptance of the revised Terms.

14. Resolving Complaints and Damage Reports.

If a Member provides valid evidence that you, your guest(s), or your pet(s) have:

(i) damaged the complaining Member’s, or the Accommodation owner’s (where the Accommodation owner is not also the Host), real or personal property, or real or personal property the complaining Member is responsible for, or has an economic interest in; or

(ii) caused loss of booking income for bookings via the Airbnb Platform or other consequential damages which result directly from the damage caused under (i) above; or

(iii) otherwise caused the complaining Member to incur cleaning costs in excess of the Member’s cleaning fee (each of (i), (ii), and (iii) being a (“**Damage Report**”),

the complaining Member can notify Airbnb and/or seek compensation through the **Resolution Center**. You will be notified of the Damage Report and given an opportunity to respond. If you agree to pay, or if the Damage Report is escalated to Airbnb and Airbnb determines in its sole discretion that the Damage Report is valid and you are responsible for the Damage Report, Airbnb via Airbnb Payments can collect the amount of the Damage Report from you. You agree that Airbnb may seek to recover from you under any insurance policies you maintain and that Airbnb may also pursue against you any remedies it may have available under applicable law, including referral of the matter to a collections agency, and/or pursuit of available

causes of action and/or claims against you. You agree to cooperate in good faith, provide any information Airbnb requests, execute documents, and take further reasonable action, in connection with Damage Reports, Member complaints, claims under insurance policies, or other claims related to your provision or use of Host Services.

15. Airbnb's Role.

We offer you the right to use a platform that enables Members to publish, offer, search for, and book Host Services. While we work hard to ensure our Members have great experiences using Airbnb, we do not and cannot control the conduct of Guests and Hosts. You acknowledge that Airbnb (or its affiliates) has the right, but does not have any obligation, to monitor the use of the Airbnb Platform and verify information provided by our Members. For example, we may record, review, monitor, disable access to, remove, or edit text or in-app messages, phone recordings, or other Content to: (i) operate, secure and improve the Airbnb Platform (including for fraud prevention, risk assessment, investigation and customer support purposes); (ii) ensure Members' compliance with these Terms; (iii) comply with applicable law or the order or requirement of a court, law enforcement or other administrative agency or governmental body; (iv) address Content that we determine is harmful or objectionable; (v) take actions set out in these Terms; and (vi) maintain and enforce any quality or eligibility criteria, including by removing Listings that don't meet quality and eligibility criteria. Members acknowledge and agree that Airbnb administers its Additional Legal Terms, Policies (such as our Major Disruptive Events Policy) and Standards (such as basic requirements for hosts), including decisions about whether and how to apply them to a particular situation, at its sole discretion. Members agree to cooperate with and assist Airbnb (or its affiliates) in good faith, and to provide us with such information and take such actions as may be reasonably requested by us with respect to any investigation undertaken by us regarding the use or abuse of the Airbnb Platform. Airbnb is not acting as an agent for any Member except for where Airbnb Payments acts as a collection agent as provided in the Payments Terms.

16. Member Accounts.

You must register an account to access and use many features of the Airbnb Platform. Registration is only permitted for legal entities, partnerships and natural persons who are 18 years or older. You represent and warrant that you are not a person or entity barred from using the Airbnb Platform under the laws of the United

States, your place of residence, or any other applicable jurisdiction. You must provide accurate, current, and complete information during registration and keep your account information up-to-date. You may not transfer your account to someone else. You are responsible for maintaining the confidentiality and security of your account credentials and may not disclose your credentials to any third party. You are responsible and liable for activities conducted through your account and must immediately notify Airbnb if you suspect that your credentials have been lost, stolen, or your account is otherwise compromised. If and as permitted by applicable law, we may, but have no obligation to (i) ask you to provide identification or other information, (ii) undertake checks designed to help verify your identity or background, (iii) screen you against third-party databases or other sources and request reports from service providers, and (iv) obtain reports from public records of criminal convictions or sex offender registrations or their local equivalents.

17. Disclaimer of Warranties.

The Airbnb Platform and all Content are provided “as is” without warranty of any kind and Airbnb (or its affiliates) disclaim all warranties, whether express or implied. For example: (i) we do not endorse or warrant the existence, conduct, performance, safety, quality, legality or suitability of any Guest, Host, Host Service, Listing or third party; (ii) we do not warrant the performance or non-interruption of the Airbnb Platform; and (iii) we do not warrant that verification, identity or background checks conducted on Listings or Members (if any) will identify past misconduct or prevent future misconduct. Any references to a Member or Listing being "verified" (or similar language) indicate only that the Member or Listing or Airbnb (or its affiliates) has completed a relevant verification or identification process and nothing else. The disclaimers in these Terms apply to the maximum extent permitted by law. If you have statutory rights or warranties Airbnb (or its affiliates) cannot disclaim, the duration of any such statutorily required rights or warranties, will be limited to the maximum extent permitted by law.

18. Limitations on Liability.

Neither Airbnb (including its affiliates and personnel) nor any other party involved in creating, producing, or delivering the Airbnb Platform or any Content will be liable for any incidental, special, exemplary or consequential damages, including lost profits, loss of data or loss of goodwill, service interruption, computer damage or system failure or the cost of substitute products or services, or for any

damages for personal or bodily injury or emotional distress arising out of or in connection with (i) these Terms, (ii) the use of or inability to use the Airbnb Platform or any Content, (iii) any communications, interactions or meetings you may have with someone you interact or meet with through, or as a result of, your use of the Airbnb Platform, or (iv) publishing or booking of a Listing, including the provision or use of Host Services, whether based on warranty, contract, tort (including negligence), product liability or any other legal theory, and whether or not Airbnb has been informed of the possibility of such damage, even if a limited remedy set out in these Terms is found to have failed of its essential purpose.

Except for our obligation to transmit payments to Hosts under these Terms, or make payments under the Airbnb Host Damage Protection, in no event will Airbnb's aggregate liability for any claim or dispute arising out of or in connection with these Terms, your interaction with any Members, or your use of or inability to use the Airbnb Platform, any Content, or any Host Service, exceed: (A) to Guests, the amount you paid as a Guest during the 12-month period prior to the event giving rise to the liability, (B) to Hosts, the amount paid to you as a Host in the 12-month period prior to the event giving rise to the liability, or (C) to anyone else, one hundred U.S. dollars (US\$100).

These limitations of liability and damages are fundamental elements of the agreement between you and Airbnb. If applicable law does not allow the limitations of liability set out in these Terms, the above limitations may not apply to you.

19. Indemnification.

To the maximum extent permitted by applicable law, you agree to release, defend (at Airbnb's option), indemnify, and hold Airbnb (including Airbnb Payments, other affiliates, and their personnel) harmless from and against any claims, liabilities, damages, losses, and expenses, including, without limitation, reasonable legal and accounting fees, arising out of or in any way connected with: (i) your breach of these Terms (including any supplemental or additional terms that apply to a product or feature) or our Additional Legal Terms, Policies or Standards, (ii) your improper use of the Airbnb Platform, (iii) your interaction with any Member, stay at an Accommodation, participation in a Service, Experience, or other Host Service, including without limitation any injuries, losses or damages (whether compensatory, direct, incidental, consequential or otherwise) of any kind arising in connection with or as a result of such interaction, stay, participation or use, (iv) your failure, or our failure at your direction, to accurately report, collect or remit

Taxes, or (v) your breach of any laws, regulations or third party rights such as intellectual property or privacy rights. You agree to indemnify and hold Airbnb (including Airbnb Payments, other affiliates, and their personnel) harmless from and against any of the aforementioned claims, liabilities, damages, losses, and expenses, regardless of Airbnb's responsibility for negligence and howsoever the same may be caused.

20. Contracting Entities.

Based on your country of residence or establishment and what you are doing on the Airbnb Platform, Schedule 1 below sets out the Airbnb entity with whom you are contracting. If we identify through the Airbnb Platform, an Airbnb entity other than the one set out on Schedule 1 as being responsible for a product, feature or transaction, the Airbnb entity so identified is your contracting entity with respect to that product, feature or transaction. If you change your country of residence or establishment, the Airbnb company you contract with (as set out on Schedule 1) and the applicable version of the Terms of Service will be determined by your new country of residence or establishment, from the date on which your country of residence or establishment changes.

21. United States Governing Law and Venue.

If you reside or have your place of establishment in the United States, these Terms will be interpreted in accordance with the laws of the State of California and the United States of America, without regard to conflict-of-law provisions. Judicial proceedings (other than small claims actions) that are excluded from the arbitration agreement in Section 22 must be brought in state or federal court in San Francisco, California, unless we both agree to some other location. You and we both consent to venue and personal jurisdiction in San Francisco, California.

22. United States Dispute Resolution and Arbitration Agreement.

PLEASE READ THE FOLLOWING PARAGRAPHS CAREFULLY BECAUSE THEY PROVIDE THAT YOU AND AIRBNB AGREE TO RESOLVE ALL DISPUTES BETWEEN US THROUGH BINDING INDIVIDUAL ARBITRATION AND INCLUDE A CLASS ACTION WAIVER AND JURY TRIAL WAIVER. This Arbitration Agreement supersedes all prior versions.

22.1 Application.

This Arbitration Agreement only applies to you if your country of residence or establishment is the United States. If your country of residence or establishment is not the United States, and you nevertheless attempt to bring any legal claim against Airbnb in the United States, this Arbitration Agreement will apply for determination of the threshold issue of whether this Section 22 applies to you, and all other threshold determinations, including residency, arbitrability, venue, and applicable law.

22.2 Overview of Dispute Resolution Process.

Airbnb is committed to participating in a consumer-friendly dispute resolution process. To that end, these Terms provide for a two-part process for individuals to whom this Section 22 applies: (1) an informal negotiation directly with Airbnb's customer service team (described in paragraph 22.3, below), and if necessary (2) a binding arbitration in accordance with the terms of this Arbitration Agreement. You and Airbnb each retain the right to seek resolution of the dispute in small claims court as an alternative to arbitration.

22.3 Mandatory Pre-Arbitration Dispute Resolution and Notification.

At least 30 days prior to initiating an arbitration, you and Airbnb each agree to send the other party an individualized notice of the dispute in writing ("**Pre-Dispute Notice**") and attempt in good faith to negotiate an informal resolution of the individual claim. You must send your Pre-Dispute Notice to Airbnb by mailing it to Airbnb's agent for service: **CSC Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833**. Airbnb will send its Pre-Dispute Notice to the email address associated with your Airbnb account. A Pre-Dispute Notice must include: the date, your name, mailing address, your Airbnb username, the email address you used to set up your Airbnb account, your signature, a brief description of the dispute, and the relief sought. If the parties are unable to resolve the dispute within the 30-day period, only then may either party commence arbitration by filing a written demand for arbitration with the arbitration provider designated pursuant to Section 22.6, below. A claimant's Pre-Dispute Notice requirement is a prerequisite to any arbitration, and a copy of the Pre-Dispute Notice and evidence that it was sent as required by this Section must be attached to any arbitration demand.

22.4 Agreement to Arbitrate; Delegation.

You and Airbnb mutually agree that any dispute, claim or controversy arising out of or relating to these Terms or the applicability, breach, termination, validity,

enforcement or interpretation thereof, or any use of the Airbnb Platform, Host Services, or any Content (collectively, “Disputes”) will be settled by binding arbitration on an individual basis (the “Arbitration Agreement”). If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a Dispute, you and Airbnb agree that an arbitrator will decide that issue. For the avoidance of doubt, you and Airbnb agree that any question regarding arbitrability and the formation, enforceability, validity, scope, or interpretation of all or part of this Section 22, including any dispute over compliance with the Pre-Dispute Notice requirement and a party’s responsibility to pay arbitration fees, shall be resolved exclusively by an arbitrator.

22.5 Exceptions to Arbitration Agreement.

You and Airbnb each agree that the following causes of action and/or claims for relief are exceptions to the Arbitration Agreement and will be brought in a judicial proceeding in a court of competent jurisdiction (as defined by Section 22): (i) any claim or cause of action alleging actual or threatened infringement, misappropriation or violation of a party’s copyrights, trademarks, trade secrets, patents, or other intellectual property rights; (ii) any claim or cause of action seeking emergency injunctive relief based on exigent circumstances (e.g., imminent danger or commission of a crime, hacking, cyber-attack); or (iii) a request for the remedy of public injunctive relief; (iv) any claim or cause of action for vexatious litigation; or (v) any individual claim of sexual assault or sexual harassment arising from your use of the Airbnb Platform or Host Services. You and Airbnb agree that any request for the remedy of public injunctive relief will proceed after the arbitration of all arbitrable claims, remedies, or causes of action, and will be stayed pending the outcome of the arbitration pursuant to section 3 of the Federal Arbitration Act.

22.6 Arbitration Forum Rules and Governing Law.

This Arbitration Agreement evidences a transaction in interstate commerce and the Federal Arbitration Act governs all substantive and procedural interpretation and enforcement of this Arbitration Agreement, and not state law. The arbitration will be administered by ADR Services, Inc. (“**ADR**”) (www.adrservices.com) in accordance with Rules 1, 6–7, 8–9, and 11–12, 45, 54, and 56 of the Federal Rules of Civil Procedure (“Selected **Federal Rules**”) (<https://www.uscourts.gov/rules-policies/current-rules-practice-procedure/federal-rules-civil-procedure>) and ADR’s Arbitration Rules then in effect (the “**ADR Rules**”), except as the Selected Federal Rules or ADR Rules are modified by or conflict with this Arbitration Agreement. The ADR Rules are available at www.adrservices.com. If an arbitration demand is submitted to ADR Services in

accordance with this agreement and the ADR Rules, and ADR Services cannot or will not administer the arbitration, the arbitration will be administered by the American Arbitration Association (“**AAA**”) in accordance with the Selected Federal Rules and the AAA’s Consumer Arbitration Rules (the “**AAA Rules**”) then in effect, except as modified here. The AAA Rules are available at www.adr.org. If the AAA cannot and will not administer the arbitration, you and Airbnb shall confer and select an alternative arbitral forum, and if we are unable to agree, either you or Airbnb may ask a court to appoint an arbitrator pursuant to 9 U.S.C. § 5. In that event, the arbitration will be conducted in accordance with the rules of the appointed arbitral forum, unless those rules are inconsistent with the provisions of this Arbitration Agreement.

22.7 Modification of Arbitration Rules - Arbitration Hearing/Location.

In order to make the arbitration most cost-effective, efficient, and convenient, any required arbitration hearing in an arbitration wherein the amount in controversy does not exceed \$1,000,000 shall be conducted remotely via video conference except as otherwise agreed by the parties or instructed by the arbitrator. Any required arbitration hearing in an arbitration wherein the amount in controversy exceeds \$1,000,000 shall be conducted in San Francisco County except as otherwise agreed by the parties or instructed by the arbitrator. If the amount in controversy is \$10,000 or less, the parties agree to proceed solely on the submission of documents to the arbitrator, provided that the arbitrator has discretion to decide to hold a hearing in response to the reasonable and proportionate request from a party.

22.8 Modification of Arbitration Rules - Arbitration Fees and Costs.

Your arbitration fees and your share of arbitrator compensation shall be governed by the ADR Rules and the ADR Services fee schedule (available at www.adrservices.com). If you have a gross monthly income of less than 300% of the federal poverty guidelines, you are entitled to a waiver of arbitration fees and costs, exclusive of arbitrator fees. You may request a fee waiver by providing the arbitration provider with a declaration under oath stating your monthly income and the number of persons in your household. If a fee waiver is granted by the arbitration provider and you provide Airbnb with documents necessary to prove that your gross monthly income is less than 300% of the federal poverty guidelines, Airbnb will pay your share of any arbitrator fees.

22.9 Modification of Arbitration Rules - Claims Brought for an Improper Purpose or In Violation of This Arbitration Agreement.

Either party may make a request that the arbitrator impose sanctions upon proving

that the other party or its attorney(s) has asserted a claim or defense that is groundless in fact or law, brought in bad faith or for the purpose of harassment, or is otherwise frivolous. As allowed by applicable law, the arbitrator shall impose sanctions equal to the requesting party's reasonable attorneys' fees and costs upon finding that a claim or defense is groundless in fact or law, brought in bad faith or for the purpose of harassment, asserted in violation of Fed. R. Civ. P. 11(b) (treating the arbitrator as "the court"), or is otherwise frivolous. Either party may seek dismissal of any arbitration filed in violation of any provision of this Arbitration Agreement. Either party may assert in arbitration a counterclaim for the other party's initiation of proceedings concerning an arbitrable Dispute without complying with or otherwise in violation of the requirements of this Arbitration Agreement. Upon finding that a party has initiated proceedings concerning an arbitrable Dispute without complying with or otherwise in violation of the requirements of this Arbitration Agreement, the arbitrator shall award the other party its actual damages, including but not limited to reasonable attorneys' fees and costs.

22.10 Arbitrator's Decision.

The arbitrator will issue a written decision which shall include the essential findings and conclusions upon which the arbitrator based the award. Judgment on the arbitration award may be entered in any court with proper jurisdiction. The arbitrator may award any relief allowed by law or the ADR Rules, but declaratory or injunctive relief may be awarded only on an individual basis and only to the extent necessary to provide relief warranted by the claimant's individual claim.

22.11 Jury Trial Waiver.

You and Airbnb acknowledge and agree that both parties are each waiving the right to a trial by jury as to all arbitrable Disputes.

22.12 No Class Actions or Representative Proceedings.

You and Airbnb acknowledge and agree that, to the fullest extent permitted by law, we are each waiving the right to participate as a plaintiff or class member in any purported class action lawsuit, class-wide arbitration, private attorney general action, or any other representative or consolidated proceeding. Unless we agree in writing or as provided in this agreement, the arbitrator may not consolidate more than one party's claims and may not otherwise preside over any form of any class or representative proceeding. If there is a final judicial determination that applicable law precludes enforcement of the waiver contained in this paragraph as to any claim, cause of action or requested remedy, then that claim, cause of action or requested

remedy, and only that claim, cause of action or requested remedy, will be severed from this agreement to arbitrate and will be brought in a court of competent jurisdiction. In the event that a claim, cause of action or requested remedy is severed pursuant to this paragraph, then you and we agree that the claims, causes of action or requested remedies that are not subject to arbitration will be stayed until all arbitrable claims, causes of action and requested remedies are resolved by the arbitrator.

22.13 Mass Action Waiver.

You and Airbnb acknowledge and agree that the relative benefits and efficiencies of arbitration may be lost when 100 or more arbitration claims are filed within 180 days which (1) involve the same or similarly situated parties; (2) are based on the same or similar claims which arise from the same or substantially identical transactions, incidents, alleged violations or events requiring the determination of the same or substantially identical questions of law or fact; and (3) involve the same or coordinated counsel for the parties (“**Mass Action**”). Accordingly, you and Airbnb agree to waive the right to have any Dispute administered, arbitrated, or resolved as part of a Mass Action (though Sections 21 and 22.12 of these Terms will continue to apply to the Dispute). In case of a dispute, the appointed arbitrator for the first matter instituted within a set of claims identified by either party shall decide whether those claims are part of a Mass Action. If no arbitrator has yet been appointed, an arbitrator shall be appointed solely to determine whether claims identified by either party are part of a Mass Action. Nothing in this provision prevents you or Airbnb from participating in a mass settlement of claims.

22.14 Modification of Arbitration Rules – Mass Action Batching Requirements.

If for any reason, notwithstanding Section 22.13, an arbitration proceeds as part of a Mass Action, the parties shall group the arbitration demands into batches of no more than 200. The batches shall be determined by listing the claimants’ alphabetically (by last name or business name, as applicable)—for example, the first 200 claimants listed will be the first batch, the next 200 claimants listed will be the second batch, and so forth. The parties shall randomly assign each batch a sequential number and arbitrate the batches one at a time, in sequential order. While one batch is being arbitrated, the arbitration provider shall hold the remainder in abeyance unless otherwise agreed by the parties or instructed by the arbitration provider. Each batch shall be resolved within 240 days of the pre-hearing conference for that batch. Notwithstanding the forgoing, if any claimant’s demand has not been the subject of

a pre-hearing conference within 2 years of the latest-filed demand in the Mass Action, such claimant may elect to pursue the claims asserted in the claimant's demand in court subject to Sections 21 and 22.12 of these Terms.

22.15 Modifications of Arbitration Rules - Offers of Judgment.

At least 10 days before the date set for the arbitration hearing, you or Airbnb may serve a written offer of judgment on the other party to allow judgment on specified terms. If the offer is accepted, the offer with proof of acceptance shall be submitted to the arbitration provider, who shall issue an award accordingly. If the offer is not accepted prior to the arbitration hearing or within 30 days after it is made, whichever occurs first, it shall be deemed withdrawn and cannot be given as evidence in the arbitration, other than with respect to costs (including all fees paid to the arbitration provider). If an offer made by one party is not accepted by the other party, and the other party fails to obtain a more favorable award, the other party shall not recover their post-offer costs and shall pay the offering party's costs (including all fees paid to the arbitration provider) from the time of the offer.

22.16 Severability.

Except as provided in Section 22.11, in the event that any portion of this Arbitration Agreement is deemed illegal or unenforceable, such provision will be severed and the remainder of the Arbitration Agreement will be given full force and effect.

22.17 Amendment to Agreement to Arbitrate.

If Airbnb amends this Section 22 after the date you last accepted these Terms (or accepted any subsequent changes to these Terms), you may reject the change by sending us written notice no later than 30 days of the date the change is effective. Your notice must include your name, mailing address, the date of the notice, your Airbnb username, the email address you used to set up your Airbnb account, your signature, and an unequivocal statement that you want to opt out of the amended Section 22. You must either mail your notice to this address: 888 Brannan St, San Francisco, CA 94103, Attn: Arbitration Opt-Out, or email the opt-out notice to arbitration.opt.out@airbnb.com. Rejecting a new change, however, does not revoke or alter your prior consent to any earlier agreements to arbitrate any Dispute between you and Airbnb (or your prior consent to any subsequent changes thereto), which will remain in effect and enforceable as to any Dispute between you and Airbnb.

22.18 Survival.

Except as provided in Section 22.12 and subject to Section 12.6, this Section 22 will survive any termination of these Terms and will continue to apply even if you stop using the Airbnb Platform or terminate your Airbnb account.

23. China Governing Law and Dispute Resolution.

23.1 Cross-border Transactions.

If you reside or have your place of establishment in China, and are contracting with Airbnb, Inc., Airbnb Stays Inc., Airbnb Travel, LLC, Airbnb Global Holdings, Inc., Airbnb Singapore Private Limited, Luxury Retreats International ULC or any other non-China entity, these Terms and this Section are governed by the laws of Singapore. In this situation, any dispute arising out of or in connection with these Terms or use of the Airbnb Platform, including any question regarding the existence, validity or termination of these Terms, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre (“**SIAC**”) in accordance with the Arbitration Rules of the Singapore International Arbitration Centre (“**SIAC Rules**”) for the time being in force, which rules are deemed to be incorporated by reference in this clause. The seat of the arbitration shall be Singapore. The Tribunal shall consist of three (3) arbitrators. The language of the arbitration shall be English.

23.2 Without Limitation Provisions.

The above Section 23.1 is expressed to be without regard to conflict of laws provisions and shall not be construed to limit any rights which Airbnb (or its affiliates) may have to apply to any court of competent jurisdiction for any order requiring you to perform or be prohibited from performing certain acts and other provisional relief permitted under the laws of Singapore, the People’s Republic of China, or any other laws that may apply to you.

24. Brazil Governing Law and Venue

If you reside or have your place of establishment in Brazil, these Terms will be interpreted in accordance with the laws of Brazil, without regard to conflict-of-law provisions. Legal proceedings that you are able to bring against us arising from or in connection with these Terms may only be brought in a court located in Brazil.

25. Rest of World Dispute Resolution, Venue and Forum, and

Governing Law.

If you reside or have your place of establishment outside of the United States, China, and Brazil, this Section applies to you and these Terms will be interpreted in accordance with Irish law. The application of the United Nations Convention on Contracts for the International Sale of Goods (CISG) is excluded. If you are acting as an individual consumer and if mandatory statutory consumer protection regulations in your country of residence contain provisions that are more beneficial for you, such provisions shall apply irrespective of the choice of Irish law. As an individual consumer, you may bring any judicial proceedings relating to these Terms before the competent court of your place of residence or the competent court of Airbnb's place of business in Ireland. If Airbnb wishes to enforce any of its rights against you as a consumer, we may do so only in the courts of the jurisdiction in which you are a resident. If you are acting as a business, you agree to submit to the exclusive jurisdiction of the Irish courts.

26. Miscellaneous.

26.1 Interpreting these Terms.

Except as they may be supplemented by additional terms, conditions, policies, guidelines, standards, and in-product disclosures, these Terms (including those items incorporated by reference) constitute the entire agreement between Airbnb and you pertaining to your access to or use of the Airbnb Platform and supersede any and all prior oral or written understandings or agreements between Airbnb and you. These Terms do not and are not intended to confer any rights or remedies upon anyone other than you and Airbnb. If any provision of these Terms is held to be invalid or unenforceable, except as otherwise indicated in Section 22.11 above, such provision will be struck and will not affect the validity and enforceability of the remaining provisions. Where the word “will” is used in these Terms it connotes an obligation with the same meaning as “shall.”

26.2 No Waiver.

Airbnb's failure to enforce any right or provision in these Terms will not constitute a waiver of such right or provision unless acknowledged and agreed to by us in writing. Except as expressly set forth in these Terms, the exercise by either party of any of its remedies under these Terms will be without prejudice to its other remedies under these Terms or otherwise permitted under law.

26.3 Assignment.

You may not assign, transfer or delegate this agreement or your rights and obligations hereunder without Airbnb's prior written consent. Airbnb may without restriction assign, transfer or delegate this agreement and any rights and obligations hereunder, at its sole discretion, with 30 days' prior notice.

26.4 Notice.

Unless specified otherwise, any notices or other communications to Members permitted or required under this agreement, will be provided electronically and given by Airbnb via email, Airbnb Platform notification, messaging service (including SMS and WeChat), or any other contact method we enable and you provide. If a notification relates to a booking or Listing in Japan, you agree and acknowledge that such notifications via electronic means in lieu of a written statement, satisfies Airbnb's obligations under Article 59 (1) of the Japanese Housing Accommodation Business Act.

26.5 Third-Party Services.

The Airbnb Platform may contain links to third-party websites, applications, services or resources ("**Third-Party Services**") that are subject to different terms and privacy practices. Airbnb is not responsible or liable for any aspect of such Third-Party Services and links to such Third-Party Services are not an endorsement.

26.6 Google Terms.

Some translations on the Airbnb Platform are powered by Google. Google disclaims all warranties related to the translations, express or implied, including any warranties of accuracy, reliability, and any implied warranties for merchantability, fitness for a particular purpose and non-infringement. Some areas of the Airbnb Platform implement Google Maps/Earth mapping services, including Google Maps API(s). Your use of Google Maps/Earth is subject to the [Google Maps/Google Earth Additional Terms of Service](#).

26.7 Apple Terms.

If you access or download our application from the Apple App Store, you agree to [Apple's Licensed Application End User License Agreement](#).

26.8 Platform Content.

Content made available through the Airbnb Platform, including without limitation trademarks, trade dress, inventions, algorithms, computer programs (in source code and object code), customer and marketing information and other content (“**Platform Content**”), whether registered or unregistered, which may be protected by copyright, trademark, patent, trade secrets, know how, and/or other laws of the United States and other countries. You acknowledge that all intellectual property rights for that Platform Content are the exclusive property of Airbnb and/or its licensors and agree that you will not remove, alter or obscure any copyright, trademark, service mark or other proprietary rights notices. You may not use, copy, adapt, modify, prepare derivative works of, distribute, license, sell, transfer, publicly display, publicly perform, transmit, broadcast or otherwise exploit any Platform Content accessed through the Airbnb Platform except to the extent you are the legal owner of that Platform Content or as expressly permitted in these Terms. Subject to your compliance with these Terms, Airbnb grants you a limited, non-exclusive, non-sublicensable, revocable, non-transferable license to (i) download and use the Airbnb Platform mobile application on your personal device(s); and (ii) access and view the Platform Content made available on or through the Airbnb Platform and accessible to you, solely for your personal and non-commercial use.

26.9 Airbnb.org.

Airbnb.org is a nonprofit corporation exempt from income taxation under U.S. Internal Revenue Code Section 501(c)(3), operating as a public charity. Airbnb.org is not owned or controlled by Airbnb. Airbnb.org administers a number of charitable programs that benefit our Host and Guest communities and the public.

26.10 Force Majeure.

Airbnb shall not be liable for any delay or failure to perform resulting from abnormal or unforeseeable circumstances outside its reasonable control, the consequences of which would have been unavoidable despite all efforts to the contrary, including, but not limited to, acts of God, natural disasters, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, pandemics, epidemics or disease, strikes or shortages of transportation facilities, fuel, energy, labor or materials.

26.11 Emails and SMS.

You will receive administrative communications from us using the email address or other contact information you provide for your Airbnb account. Enrollment in additional email subscription programs will not affect the frequency of these administrative emails, though you should expect to receive additional emails specific

to the program(s) to which you have subscribed. You may also receive promotional emails from us. No fee is charged for these promotional emails, but third-party data rates could apply. You can control whether you receive promotional emails using the notification preferences in your account settings. Please note that you will not be able to take advantage of certain promotions if you disable certain communication settings or do not have an Airbnb account. In the U.S. if you consent to receive SMS (text messages) from us, you will be subject to our [SMS Terms](#).

26.12 Contact Us.

If you have any questions about these Terms please [email us](#).

Schedule 1 - Contracting Entities

Your Place of Resident or Establishment: United States

YOUR ACTIVITY ON THE AIRBNB PLATFORM:	AIRBNB CONTRACTING ENTITY:	CONTACT INFORMATION:
Booking or offering certain hotels or traditional accommodations, where Airbnb Travel, LLC is identified in the checkout or listing process.	Airbnb Travel, LLC	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering accommodations located in the United States for stays of 28 nights or more where Airbnb Stays, Inc. is identified in the checkout or listing process.	Airbnb Stays, Inc.	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering accommodations where Luxury Retreats	Luxury Retreats International ULC	5530 St. Patrick Street, Suite 2210, Montreal,

International ULC is identified in the checkout or listing process or other product surface.		Quebec, H4E 1A8
Booking or Offering Services or Experiences.	Airbnb Beyond LLC	888 Brannan Street, San Francisco, CA 94103, United States
All other activities.	Airbnb, Inc.	888 Brannan Street, San Francisco, CA 94103, United States

Your Place of Resident or Establishment: China (which for purposes of these Terms, refers to the People's Republic of China and does not include Hong Kong, Macau and Taiwan)

YOUR ACTIVITY ON THE AIRBNB PLATFORM:	AIRBNB CONTRACTING ENTITY:	CONTACT INFORMATION:
Booking or offering certain hotels or traditional accommodations, located outside of China, where Airbnb Travel, LLC is identified in the checkout or listing process.	Airbnb Travel, LLC	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering accommodations located in the United States for stays of 28 nights or more where Airbnb Stays, Inc. is	Airbnb Stays, Inc.	888 Brannan Street, San Francisco, CA 94103, United States

identified in the checkout or listing process.		
Booking or offering accommodations where Luxury Retreats International ULC is identified in the checkout or listing process or other product surface.	Luxury Retreats International ULC	5530 St. Patrick Street, Suite 2210, Montreal, Quebec, H4E 1A8
Booking or offering of Services, Experiences, or any other Host Service, located outside China.	Airbnb Singapore Private Limited	158 Cecil Street, #14-01, Singapore 069545 8 Hanover Quay, Dublin 2, Ireland
Licensing of Content and/or Platform Content, and all other activities falling within scope of Sections 10 and 27.9 of these Terms	Airbnb Global Holdings, Inc.	888 Brannan Street, San Francisco, CA 94103, United States 8 Hanover Quay, Dublin 2, Ireland
All other activities	Airbnb Singapore Private Limited	158 Cecil Street, #14-01, Singapore 069545 01B, Unit 1401, 14th Floor, East Tower, World Financial Center, No.1, East Third Ring Middle

		Road Chaoyang District, Beijing, China 100020
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Your Place of Resident or Establishment: Japan

YOUR ACTIVITY ON THE AIRBNB PLATFORM:	AIRBNB CONTRACTING ENTITY:	CONTACT INFORMATION:
Booking or offering certain hotels or traditional accommodations, where Airbnb Travel, LLC is identified in the checkout or listing process.	Airbnb Travel, LLC	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering accommodations located in the United States for stays of 28 nights or more where Airbnb Stays, Inc. is identified in the checkout or listing process.	Airbnb Stays, Inc.	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering any other Host Service, located outside Japan.	Airbnb Ireland UC	8 Hanover Quay, Dublin 2, Ireland
Booking or offering accommodations where Luxury Retreats International ULC is identified in the checkout or listing process or other product surface.	Luxury Retreats International ULC	5530 St. Patrick Street, Suite 2210, Montreal, Quebec, H4E 1A8

Booking or offering Services or Experiences.	Airbnb Beyond Limited	8 Hanover Quay, Dublin 2, Ireland
All other activities.	Airbnb Global Services Limited	3 Dublin Landings, North Wall Quay, Dublin D01 H104, Ireland

Your Place of Resident or Establishment: Brazil

YOUR ACTIVITY ON THE AIRBNB PLATFORM:	AIRBNB CONTRACTING ENTITY:	CONTACT INFORMATION:
Any booking, offering accommodations, or any other activity.	Airbnb Plataforma Digital Ltda.	Rua Aspicuelta 422, conjunto 51, CEP: 05433-010, São Paulo - SP - Brazil

Your Place of Resident or Establishment: All other countries and territories

YOUR ACTIVITY ON THE AIRBNB PLATFORM:	AIRBNB CONTRACTING ENTITY:	CONTACT INFORMATION:
Booking or offering certain hotels or traditional accommodations, where Airbnb Travel, LLC is identified in the checkout or listing process.	Airbnb Travel, LLC	888 Brannan Street, San Francisco, CA 94103, United States
Booking or offering accommodations located in the United States for stays of 28	Airbnb Stays, Inc.	888 Brannan Street, San Francisco, CA 94103, United States

nights or more where Airbnb Stays, Inc. is identified in the checkout or listing process.		States
Booking or offering accommodations where Luxury Retreats International ULC is identified in the checkout or listing process or other product surface.	Luxury Retreats International ULC	5530 St. Patrick Street, Suite 2210, Montreal, Quebec, H4E 1A8
Booking or offering Services or Experiences.	Airbnb Beyond Limited	8 Hanover Quay, Dublin 2, Ireland
All other activities.	Airbnb Ireland UC	8 Hanover Quay, Dublin 2, Ireland